



JAMAICA CONSTABULARY FORCE
Person of Interest and Wanted Persons Policy & Standard Operating Procedure

Title: JCF Person of Interest and Wanted Persons Policy & Standard Operating Procedure	Number JCF/FW/PL/C&S/0002/2022
Effective Date: October 17th, 2024	Pages:
Review Date: October 15th, 2024	Distribution: Force Wide
Revision # 1	Process Owners: DCP Crime & Security Portfolio
Rescinds: FO#3274 2010-Mar-04	
Authors: ACP CIB	Owner: JCF
First Published: F.O. # 3274 2010-Mar-04	Review: Biennially

Table of Contents

1. Introduction	3
2. Purpose	3
3. Scope.....	3
4. Abbreviations and Acronyms	4
5. Roles & Responsibility.....	5
Divisional Duty Sub Officers.....	Error! Bookmark not defined.
Divisional Detective Inspector	Error! Bookmark not defined.
Senior Superintendent National Intelligence Bureau	Error! Bookmark not defined.
Divisional Intelligence Unit	Error! Bookmark not defined.
Police Emergency Control Centre	5
6. Policy Statement.....	5
7. Standard Operating Procedure	6
8. Legislative Authority/Guiding Principles.....	13
9. Relevant Documents and Forms	14

1. Introduction

One of the primary purposes of any police force is to investigate and detect offences, this can be achieved by utilising all the legal means that exist. Questioning suspects is one of the most important. The primary aim must be to provide evidence sufficient to present a 'prima facie' case, in relation to any prosecution.

The current high use of 'arrest warrants' significantly reduces our investigative capability, in effect the execution of a warrant immediately 'charges' the person with an offence and as such the charged person should then be brought before the court, forthwith.

Judges Rules limits interviews of persons arrested on an 'arrest warrant' and breaches of such are likely to render the interview inadmissible at court, as interviews after charge (including when arrested on a warrant) can only be conducted in special circumstances.

This policy has clearly defined criteria, to improve performance, whereby all police officers MUST comply, so that the following improvements can be achieved:

- i. Recording activity
- ii. Identifying who is responsible
- iii. Specific staff accountable for their actions and
- iv. Increased Integrity of the system.

2. Purpose

The purpose of this policy is to:

To provide the highest standard of professionalism and best practice when dealing with wanted persons, thus achieving:

- a. Recorded policy & Standard Operating Procedure
- b. Recorded decision making process
- c. Recorded circulation & cancellation process, to accurately identify and communicate details of wanted persons, throughout Jamaica.
- d. Policy that can be supervised and monitored to hold individual staff to account for their decisions, supervision and their actions.

Further, the aim of this policy is to increase our internal and external communication and to improve our effectiveness in detecting and preventing crime, whilst also reassuring the people of Jamaica that wanted persons are promptly arrested and fairly treated in accordance with the constitution and laws of Jamaica.

3. Scope

This Policy and Standard Operating Procedures apply to every member of the JCF connected to the investigation of wanted persons. Precisely it deals with, the management of the wanted person register, the circulation of wanted person, cancellation of wanted person, how to administer question and answer interview with suspects. This policy outline best practices for improving the investigative capability and working practices of the JCF, by providing a new policy to enable police to arrest and interview persons suspected of committing criminal offences.

4. Abbreviations and Acronyms

ACIO	Area Criminal Investigating Officer
ACP	Assistant Commissioner of Police
AO	Authorising Officer
CIB	Criminal Investigation Bureau
CTOC	Counter - Terrorism and Organized Crime
DCIO	Divisional Criminal Investigating Officer
DDI	Divisional Detective Inspector
DIU	Divisional Intelligence Unit
IO	Investigating Officer
MID	Major Investigation Division
NIB	National Intelligence Bureau
OC	Otherwise called
SIO	Senior Investigating Officer
SM	Station Manager

5. Definitions

5.1 First Investigating Officer (IO)

The **IO** (any police personnel who holds the office of ‘Constable’ within Jamaica) will conduct an immediate investigation of any offence; that they are made aware of or in the course of their duties is seen by them or reported to them or suspected by them to have been committed.

It should be noted that the first **IO** is any police personnel who is the first ‘Police’ to arrive on any scene/incident and remains such until a ‘Formal’ hand over to another **IO** or a senior police officer has been accomplished.

The **IO** is responsible for conducting an effective investigation and reporting such without delay to a senior officer or their **Divisional Manager** whether ‘on’ or ‘off duty’. A ‘**Constable**’ is a special ‘office’ which carries a 24 hour responsibility in law and cannot be ignored.

5.2 Authorising Officer (AO)

The **AO** refers to a person who is responsible for authorising certain activity under this policy, such as the:

5.2.1 DDI for authorising an arrest and cancellation of such should the suspect no longer be wanted (e.g. confirmed as dead, eliminated from the investigation etc.)

5.2.2 Divisional Criminal Investigating Officer (DCIO) for authorising the release of personal details of Wanted Persons (not photographs/images) to the media. In special circumstances (e.g. no power of arrest exists, the suspect has previously been arrested for this offence and now new evidence has been obtained etc.) authorising the application for an arrest warrant.

5.2.3 Area Criminal Investigating Officer (ACIO) for releasing photographs or images of Wanted Persons to the media. (excluding JCF top ten).

5.2.4 Assistant Commissioner of Police (ACP), CIB for releasing the personal details including photographs/images for the JCF Most Wanted Persons.

5.2.5 Station Manager (SM) or Divisional Sub Officer for authorising cancellation after arrest.

6. Responsibilities

It is essential with any policy to have designated roles, responsibilities and the implementation of a monitoring and review process to ensure compliance. The following highlight individual roles and their responsibilities. Note – Overall this policy refers to divisional roles/positions, although this policy **MUST** also be adhered to by specialist CIB formations (e.g. CTOC, MID etc.) and the Divisional Managers of such will designate, where necessary named individual(s) to undertake these roles.

- 6.1** SSP National Intelligence Bureau (NIB) shall be responsible for maintaining a National Wanted Persons Register for all crime cases. A specific post and an individual must be nominated to lead on this process and to maintain the register to ensure its accuracy and that timely amendment is made to minimise the number of persons being detained, who have been arrested or are no longer sought. In addition, undertaking search for any other cases in which a person may also be sought by another Division and, notifying the relevant DDI & ACIO whenever the person is identified as the suspect may require enhanced activity to effect his arrest.
- 6.2** The local Divisional Intelligence Unit shall be responsible for submitting copies of the prescribed circulation and cancellation forms for all wanted persons to NIB. A copy of this must be available to Police Control. A weekly return will be supplied by every DIU to reach NIB by 2:00pm on Monday (following working day if a Public Holiday) utilising the prescribed spreadsheet supplied by NIB. Each Divisional Manager (or Specialist formation) will be held responsible for ensuring that this is complied with.
- 6.3** Police Emergency Control Centre must make available a central and accessible copy of the National Register. This will ensure all police have 24 hour access to the data. In addition it can be immediately updated when any arrests are made. NIB must ensure the suspect has been arrested and confirm such before removal from the master register as mistakes or false details can be supplied.

7. Policy Statement

In acknowledging commitment to its mandate in the justice system, it is the policy of the JCF:

- 1. To provide a National Wanted Persons Register
- 2. To provide Investigating Officers (**IO**'s) with the ability to conduct interviews and gather additional evidence by questioning suspects and

3. Allowing the investigation to continue in an expeditious manner to secure effective prosecutions.

8. Standard Operating Procedure

8.1 Sequence of events

To implement a policy for circulating personal details of wanted persons to ensure the highest standards of integrity. In addition, it will provide an effective means of communication leading to the early arrest of wanted persons.

- 8.1.1** In order to implement this policy it is essential that the five (5) key themes are fully considered and strict compliance is obtained;
- i. Review of investigation
 - ii. Authorisation to circulate as wanted for questioning or in rare cases authority to apply for an arrest warrant (must have prior authority of the DCIO)
 - iii. Circulation of information on wanted persons.
 - iv. Authorisation to release personal details of wanted persons to the media and
 - v. Cancellation after arrest.

8.2 Wanted lists

Experience has shown that the maintenance of 'Divisional Wanted List' assist to prioritise local activity and reduce crime. In order to develop this practice further every division should have a wanted list. Maintenance and accuracy of the lists shall be the responsibility of;

- i. The DCIO for each Division/Specialist Command and
- ii. The ACP, NIB for the National Register for Wanted Persons.

- 8.2.1** All information concerning and relating to 'wanted persons' should be circulated using the following terms;

- a) **Wanted for questioning.** The use of these words will explain to the public that charges are not imminent and that the police will be questioning the suspect when detained, in accordance with Judges Rules. The **SIO/IO** will have identified and can justify 'reasonable suspicion' for the arrest of this person. An appropriate power of arrest will have been identified and at least a Detective Inspector will authorise, in writing, the circulation.
- b) **Suspected** (person of interest). To be used in cases where there are insufficient grounds to justify arrest and detention, although the police still need to conduct interviews and develop the information available to them.
- c) **Locate/Trace.** Potential witnesses and other persons who may be able to provide valuable information to assist the investigation.
- d) **Wanted on Warrant.** Only to be used in rare and exceptional cases, such as Warrants issued by the courts (e.g. absconding) or

where they have previously been arrested, interviewed and released; with new grounds identified for their arrest. (Judges Rules allows for interviews in these circumstances).

8.3 Application to CIRCULATE information on Wanted Person

As an arrest warrant technically charges a person with the offence, the information on a wanted person should be circulated as being wanted for questioning provided a specific power of arrest is available (such as Common Law etc).

8.3.1 For arrest warrants to be considered necessary, the investigation must be at the stage where we have evidence sufficient to present a 'prima facia' case to the courts and that no additional evidence is necessary to secure a conviction. This is only likely to apply in exceptional cases and as such must have the prior authority of the DCIO.

8.3.2 In addition, it is allowed under Judges Rules to interview a charged person;

- i. Preventing or minimising harm or loss to some other person or to the public (exceptional circumstances only) or
- ii. Clear up ambiguities in a previous answer or statement.

Such interviews can be allowed and later admitted in evidence, provided the rules are followed and a complete record is made.

8.4 Contemporaneous Question & Answer interviews

8.4.1 Suspects should not be charged until after a formal interview has been conducted, with their attorney present and in accordance with Judges Rules. The purpose of such interviews is to: -

- i. Secure additional evidence by way of questions and answers,
- ii. To assist to prove/disprove the suspects involvement,
- iii. Afford the suspect the opportunity to give an early account of their knowledge/actions and
- iv. Provide an opportunity to test the strength/reliability of any information obtained during the investigation.

8.4.2 In addition, the interview may provide new information that may make an identification procedure unnecessary (Special care should be taken in any case involving 'Identification issues' and as such the Attorneys-at-Law attached to Legal Affairs Division (LAD) or to any Legal Officer position of the Force MUST be consulted for advice) i.e.

- i. The suspect may admit their identity/involvement,
- ii. Place themselves at the scene(s)
- iii. Provide confirmation that they are the same person described by the witness(s) (admitting same facts as outlined by the witness such as relatives, addresses, place/type of work, friends etc).

8.4.3 Prior to any interview the IO must prepare an interview strategy. This can only be completed when all the relevant facts are known. The officer preparing the strategy must consider the following points:

- i. Points to prove in relation to the offence for which they are investigating,
- ii. Information provided by witnesses,
- iii. Additional information and/or intelligence surrounding the offences,
- iv. Articles/exhibits found at the scene(s), on arrest or at other places and connected with the investigation,
- v. Confirmation that this is the same person as described by the witness(s) (*Identification issues*).
- vi. To obtain evidence in relation to the three key elements in any investigation, Motive, Opportunity & Conduct.

All such interviews and investigations must be conducted expeditiously.

8.4.4 Statements under Caution

Judges Rules provides police with administrative directions for conducting interviews and as such describes a process that should be adopted with Question and Answer interviews appearing prior to the taking of any 'voluntary' statements under caution.

Such statements provide an opportunity for the investigator to record an early account from a suspect, who wishes to make a voluntary statement, after advice from or in the presence of an attorney. Statements in such cases are best taken in simple cases where the suspect wishes to provide their own account and the facts are not complicated.

This should be considered by the investigator as having the following limitations;

- i. Often self serving (suspects view and not able to be challenged with probing questions)
- ii. Provides only information that the suspect wishes to be included
- iii. Unlikely to answer all the points identified by the investigator in a pre-planned Interview strategy
- iv. Prevents probing questions being put.

In complicated cases or a series of crimes the preferred course of action should be to conduct a question & answer interview rather than a statement under caution. Both must be completed in accordance with Judges Rules.

8.5 Police Arresting a Wanted Person

On arrest, the arresting officer is responsible for cancelling the circulation by;

- i. INFORMING Police Control of the arrest and providing the relevant details of the arrested person **and**
- ii. COMPLETING a Station Diary entry with the relevant details **and**

- iii. **COMPLETING** a prescribed cancellation form (*CR 22B*). The original form is to be sent to the **IO**, with copies to the local **DIU** and **DDI**.

8.5.1 Divisional Criminal Investigating Officer's (DCIO) authority

It is likely that arrest warrants should only be applied for in special circumstances and then specifically authorised by DCIO, with a written record being made on the prescribed form (*CR 22A*) for the application to obtain an arrest warrant. Examples of such would be;

- a. Where no power of arrest exists (such as a 'committing' power of arrest and the offender has been subsequently identified) **or**
- b. Where a suspect has previously been arrested for the same offence and released, with additional evidence, it would then be necessary to effect his arrest on a warrant. (Likely to have previously been interviewed and as such can be interviewed again to clear up any ambiguities).

8.5.2 Non Crime cases

The Station Manager (**SM**) **MUST** review the investigation and authorise the arrest of all suspects. The **SM** will sign to this effect on the '*Prescribed Form*' (*CR 22A*) which must be retained within the case papers. The **SM** will confirm that they have personally reviewed the file and that there are sufficient grounds to effect the arrest of the named person (even if only the 'Otherwise Called' (OC) is only known). Arrests should not be authorised on a description only. A copy of the '*Prescribed Form*' (*CR 22A*) will be submitted to the **Divisional Intelligence Unit** and the original retained in the case file.

8.5.3 Crime Cases

The **DDI** **MUST** review the case file and the investigation prior to authorising the arrest of any suspect(s). The Inspector **MUST** sign to this effect on the '*Prescribed Form*' (*CR22A*) which must be retained within the case papers.

The **DDI** **WILL** confirm that they have personally reviewed the file and that there are sufficient grounds to affect the arrest of the named person (even if only the 'Otherwise Called' (OC) is only known). Arrests should not be authorised only where a description is known, in such cases special care should be taken, although arrests can be made on this basis, provided the arresting police can justify their actions.

8.5.4 Why modify the current use of Arrest Warrants?

When a police officer is trying to discover whether or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody, so long as he has not been charged with the offence or informed that he may be prosecuted for it. (Judges Rules [1964] 1 WLR 152, 154). It is an essential and a vital element of any investigation that we have strict adherence to this policy.

- 8.5.4.1** The execution of arrest warrants significantly limits interviews and the continuation of an investigation. Arrest

is very unlikely to be the final activity before charge, as the investigation must seek to obtain evidence sufficient to present a 'prime facia' case at court.

8.5.4.2 Any person who has been arrested by the police is in a vulnerable situation and as such it is a requirement of the laws of Jamaica, the Constitution and international conventions, such as Human Rights, that any such person should be treated with dignity and provided basic rights to protect them from any potential abuse.

8.5.4.3 Police have a legal duty to preserve the peace and to investigate allegations of crime and as such it is essential that any person deprived of their liberty, will be provided appropriate care and dealt with expeditiously.

8.5.4.4 The arrest and detention of an individual must be justifiable and as such this process will allow the police to determine when a suspect has been identified and then confirm whether there are sufficient grounds to effect the arrest.

8.5.4.5 This policy does not prevent the police from immediately arresting suspects when seen committing offences and is implemented essentially for those identified after the event by an effective investigation.

8.5.5 Search Warrants

Arrest Warrants should not be confused with Search Warrants. This policy does not alter in any way the existing requirements and arrangements for obtaining search warrants.

The Police may require the power to enter premises in search of prescribed items/property. Where police do not have existing powers (legislation or at Common Law) to enter such premises, a Search Warrant must be obtained.

8.5.6 Powers of Arrest/Authority

It is essential that the police know their powers of arrest and in particular when they can effect these. For example, some powers are only for:-

- i. Felonies,
- ii. Persons found committing,
- iii. Persons who have committed the offence.

This policy will highlight the main powers of arrest; however, it is the responsibility of each member of the police force to know their powers of arrest and to use them appropriately. Consideration must always be given as to whether the arrest is justified and in addition, whether or not other options are available, such as proceeding by summons.

8.5.7 Constitution of Jamaica

Section 15.1 No person shall be deprived of his personal liberty save as may in any of the following cases be authorised by law-
(f) - upon reasonable suspicion of his having committed or of being about to commit a criminal offence;

8.5.8 Common Law

What constitutes a valid arrest is enshrined in the Constitution, but it is enshrining Common Law principles – See Section 15.1(f) and enunciated in **Christie v Leachinsky (1947)** A.C. 586 by Viscount Simonds who at page 587 outlined the following five propositions as the test of what constitutes a valid arrest:-

- 8.5.8.1** If a policeman arrests without warrant upon reasonable suspicion of felony, or of other crime of a sort, which does not require a warrant, he must in ordinary circumstance inform the person arrested of the true ground of arrest. He is not entitled to keep the reason to himself or to give a reason, which is not the true reason. In other words a citizen is entitled to know on what charge or on suspicion of what crime he is seized
- 8.5.8.2** If the citizen is not so informed but is nevertheless seized, the policeman apart from certain exceptions, is liable for false imprisonment.
- 8.5.8.3** The requirement that the person arrested should be informed of the reason why he is seized naturally does not exist if the circumstances are such that he must know the general manner of the alleged offence for which he is detained.
- 8.5.8.4** The requirement that the person arrested should be informed does not mean that technical or precise languages need to be used. The matter is a matter of substance, and turns on the elementary proposition that in this country a person is prima facie, entitled to his freedom and is only required to submit to restraints on his freedom if he knows in substance the reason why it is claimed that this restraint should be imposed.
- 8.5.8.5** The person arrested cannot complain that he has not been supplied with the above information as and when he should have, if he himself produces the situation which makes it practically impossible to inform him e.g. 'By immediate counter-attack or by running away

An arrest is accomplished by words and action indicating that the arrestee is now under restraint, but an arrest is not complete until the arrest is actually under the control of the arrester. There may be an arrest by mere words, by saying 'I arrest you' without touching, provided of course that the accused submits and goes with the police

officer.

8.5.9 At Common Law a policeman may arrest without warrant;

- i. **On his view:** When a felony, treason or breach of the peace is committed or attempted in the presence of an officer, for example murder, robbery, larceny.
- ii. **On the charge of a third person:** It is the duty of a Constable, on a reasonable charge of felony being made to him by a private person against anyone else to take the supposed offender into custody. *Hedges v Chapman (1825) 2 Bing 523.*
- iii. **On his own suspicion:** The policeman may arrest on reasonable suspicion of a felony whether a felony has or has not been committed.

If it should appear that no such offence has been committed, the arrest will be justified, provided it was made on reasonable suspicion. A Constable is justified in arresting upon a reasonable suspicion of a felony having been committed whether the reasonable or suspicion are matters within his own knowledge or are facts stated to him by another. Police powers of arrest coincide with those of the citizen. He is thus a citizen in uniform.

For misdemeanour offences police must use other existing powers of arrest or consider proceeding by summons or warrant.

8.5.10 Benefits of an early arrest

8.5.10.1 It is essential to effect arrests of wanted persons at the earliest opportunity in the interests of justice. This will allow police to gather evidence and to effect prosecutions after obtaining sufficient evidence on which to act. Delays could lead to witnesses failing to support investigations or they may be hard to find.

8.5.10.2 Another significant benefit relates to the reduction in crime. It is a proven fact that the majority of serious criminal offences are committed by a small number of persistent offenders and as such, an early arrest and conviction will have a significant positive effect on the crime situation. This will also increase the confidence of the people in Jamaica that the police are able to effectively and efficiently investigate crime by using our powers appropriately.

8.6 Review of investigation

- 8.6.1** High standards of investigation are essential to secure convictions and to provide a means of establishing the truth in relation to any allegation that has been made. Usually, it should not be left to a single complainant to effect a formal charge. The Police are empowered and duty bound to investigate all allegations of crime and to obtain sufficient evidence prior to bringing any charges. Corroboration is always desirable and in some cases essential for any prosecution to succeed.
- 8.6.2** **Every effort should be made to obtain corroboration in ALL cases.** This corroboration should be seen as the best course of action to secure 'sufficient' evidence. Corroboration can be obtained from other witnesses, interviews, documents etc.
- 8.6.3** It should be a primary objective of any police force to investigate allegations of crime and as such scrutinize the information that they receive, even when this is in the form of a witness statement.

8.7 Cancellations

- 8.7.1** Cancellations after arrest will be authorised by the Divisional Duty Sub Officer or in their absence the Station Manager and for all other reasons by the DDI who will review the facts and authorise the cancellation when they have confirmed the suspect is no longer wanted.
- 8.7.2** The prescribed cancellation form (CR 22B) will in all cases be retained in the case file with copies being sent immediately to DIU, DCIO (for the ACIO & ACP, CIB).
- 8.7.3** Police Control will be informed immediately the cancellation has been authorised and a record will be made in the Station Diary to this effect, together with the date/time and the name of the receiving person at Police Control being recorded.

9. Legislative Authority/Guiding Principles

9.1 Firearms Act

Section 43(2) Constable conducting search under section 43 (1) may arrest without warrant any person found on premises or in place whom he has reason to believe is guilty of an offence against this Act.

Sections 39(3) 40(4) A constable may arrest without warrant any person who refuses to declare his name and address under section 39(2) or whom he suspects of giving a false name or address or of intending to abscond.

9.2 Larceny Act

Any person found committing any offence punishable under this Act, except an offence under section 45 may be immediately apprehended without a warrant by any person and forthwith **taken**, together with the property,

if any, before a Resident Magistrate or Justice to be dealt with according to law.

9.3 Constabulary Force Act –

Section 15: It shall be lawful for any constable without warrant to apprehend any person found committing any offence punishable upon indictment or summary conviction, and to take him forthwith before a Justice of the Peace who shall enquire into circumstances of the alleged offence and either commit the offender to the nearest jail, prison or lock-up to be dealt with according to law or to take bail by recognizance, with or without surety in such amount as such he shall direct for his appearance on such day as he shall appoint, before a court of competent jurisdiction to be dealt with according to the law’.

Section 16: Any warrant lawfully issued by a Justice of the Peace for apprehending any person charged with any offence may be executed by any Constable at any time notwithstanding that the warrant is not in his possession at that time but the warrant shall, on the demand of the person apprehended, be shown to him as soon as practicable after his arrest.

Section 18:- “It shall be lawful for any Constable to apprehend without warrant any person known or suspected to be in unlawful possession of opium, ganja, morphine, cocaine or any other dangerous or prohibited drugs or any person known or suspected to be in possession of any paper, ticket or token relating to any game or lottery or drop pan or any game of a similar nature and to take him forthwith before a Justice who shall thereupon caused such person to be searched in his presence”.

9.4 Dangerous Drugs Act

‘Any constable may arrest without warrant any person who has committed, or attempted to commit, or is reasonably suspected by such constable of having committed or attempted to commit, an offence against this Act, if he has reasonable ground for believing that the person that that person will abscond unless arrested, or if the name and address of that person are unknown to or cannot be ascertained by him.’

It should be noted that the **Road Traffic Act** provides the police with the power to stop vehicles and **Section 15 of the Constitution of Jamaica** provides powers to arrest 'if there is reasonable suspicion that the person has committed, or is about to commit a crime.....’

10. Relevant Documents and Forms

10.1 Constitution of Jamaica

10.2 Establishment of National Register for Wanted Persons
(Published Force Orders 3011 2005-02-17, Appendix A)

10.3 JCF Investigators Handbook (available thro CITI @ JPA)

11. Roles and Function

11.1 Area Criminal Investigation Officer (ACIO)

The **ACIO** will be responsible for:-

- i. Overseeing and reviewing the activity/priority given to arresting the Wanted persons for each division **and**
- ii. Authorising the release of any photographs/images to the media of any Wanted Person (subject to a personal review of the file and investigation to date. Particular care must be taken regarding '*Identification issues*'. In cases of doubt contact the Legal Officers across the island).

11.2 Divisional Criminal Investigating Officer (DCIO)

The **DCIO** will be responsible for:-

- i. Implementation of this policy, reviewing and monitoring activity and
- ii. Authorising the release of personal information of any Wanted Person to the media **and**
- iii. Oversee the Divisional Wanted list and prioritise activity to arrest the outstanding suspects without delay.

11.3 Divisional Officer in Charge (or Officer in Charge Specialist formations)

Will be responsible for ensuring **weekly** returns are made by their **DIU**'s to **NIB** and to reach them by 1400 on the first Monday of every month (or next working day if a public holiday).

11.4 Investigating Officer (IO)

The **IO** refers to the first police who discover a crime or suspects that a crime has been committed and remains so until a new **IO** has been appointed by a senior officer. The **IO** will be responsible for an effective investigation of any offence and will present the file to their line manager for supervision as required and to the relevant **AO** in accordance with this and any other policy.

When an **IO** believes they have reasonable grounds to effect an arrest they must refer the file without delay to the appropriate officer (**DDI** for crime & **Station Manager** for non crime) for their authority to circulate the suspect as 'Wanted for questioning'.

11.5 Nominated DIU Manager

Nominated DIU Manager shall:

- i. supply immediately copies of any prescribed forms for circulation and/or cancellation of Wanted Persons to **NIB** without delay and
- ii. Provide a **weekly** return on the prescribed **NIB** spreadsheet of all divisional Wanted Persons by 1400 on the first Monday of every month (or next working day if public holiday)
- iii. liaise with other **DIU**'s where suspects have connections, associates or intelligence indicates they may be located/frequent.

11.6 Non Crime offences

The **DDI** or **SM** will be responsible for:-

- i. reviewing the investigation **and**
- ii. identifying the standard of evidence obtained **and**
- iii. ensuring sufficient grounds exist to justify arrest **and**
- iv. authorising the ARREST of any person under the relevant authority, such as –
 - a. common law powers on REASONABLE GROUNDS or
 - b. other legislation where a power of arrest can be justified and a power exists.
- v. Signing the prescribed circulation form (CR 22A) as the **Authorising Officer (AO)**
- vi. Ensuring the original prescribed form is retained on the case file and copies are distributed to the local **DIU** and another submitted through the **DCIO & ACIO** for **CIB Headquarters**.

Cancelling wanted circulations should the suspect no longer be wanted (e.g. confirmed as dead, eliminated from the investigation etc.)

11.7 Senior Investigating Officer (SIO)

The **SIO** refers to the senior investigator who oversees the investigation and in particular who will be responsible for any strategic/resource issues. In cases where no **SIO** has been specifically appointed this will be the:-

Divisional Detective Inspector (DDI) for crime **or Station Manager** for non-crime offences, such as traffic, waste management, nuisance etc.